

MAGISTRATE COURT OF Fulton **COUNTY, GEORGIA**

Date Filed 10/02/2026

Case No: 24D0012345

Peach State Properties, LLC
3344 Piedmont Road NE
Atlanta, GA 30305

Plaintiff(s) Name, Address

vs.

DISPOSSESSORY PROCEEDING

ANSWER

John Doe
857 Peachtree Street NE, Atlanta, GA 30309

Defendant(s) Name, Address

(Please note and then use another sheet(s) for additional space, as needed.)

- ☒ I am the Defendant. I am filing an Answer I state the following in response to Plaintiff's claim in this lawsuit:
- ☐ I do not have a landlord tenant relationship with the plaintiff.
- ☒ My landlord did not give me the proper notice that my lease or rental agreement was terminated in accordance with the terms of our lease. The landlord did not properly demand that I move before filing the lawsuit.
- ☒ My landlord terminated my lease without a valid reason.
- ☐ I do not owe any rent to my landlord.
- ☐ I offered and had the money to pay my rent on or before the date I usually pay, but my landlord refused to accept it.
- ☐ My landlord would not accept my rent, correct late fees and the court costs. I had all the money to pay.
- ☒ My landlord failed to repair the property. This failure has lowered its value or resulted in other damages more than the rent claimed.
- ☐ I am a residential tenant. This is my first dispossession action. I am paying all my rent, late fees and court costs to the clerk.
- ☒ My landlord is not entitled to evict me or secure a money judgment for the following additional reasons: (attach if necessary)
See attached Defenses (Doc 05): Repairs, Amount, Bad Notice

COUNTERCLAIM - (Please note and then use another sheet(s) for additional space, as needed.)

- ☐ My landlord owes me _____ for the following reason(s):
- ☒ My landlord failed to repair my property. Due to this failure, its value has been reduced 780.00 each month for 2 months.
- ☐ Since my landlord failed to make requested repairs, I made these repairs. I made these repairs that cost _____ . I have all my receipts. I will bring the receipts and all documents concerning these payments to my trial.
- ☐ My landlord's failure to repair resulted in damages of : _____ to my person and/or property.

WHEREFORE, I ask this Court to:

- (a) Dismiss Plaintiff's lawsuit with all costs assessed against Plaintiff.
- (b) Enter a judgment in my favor and against Plaintiff
- (c) Plus attorney's fees in the amount of _____ pursuant to _____; and
- (d) Grant such other and further relief as the Court deems just and proper.

Signature of Defendant filing answer/ Attorney

Bar # _____

John Doe
857 Peachtree Street NE
Atlanta, GA 30309

This ___ day of _____, 20__

DEFENDANT

DEPUTY CLERK

EACH DEFENDANT MUST FILE THEIR OWN ANSWER. Attorneys may file answers for more than one defendant, pro se litigants cannot.

MAG 30-03 DISPOSSESSORY ANSWER.DOC